

The Land Ports Authority of India (Fees and Other Charges) Regulations, 2015

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The Land Ports Authority of India (Fees and Other Charges) Regulations, 2015

Rule THE-LAND-PORTS-AUTHORITY-OF-INDIA-FEES-AND-OTHER-CHARGES-REGULATIONS-2015 of 2015

Published on 27 November 2015

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The Land Ports Authority of India (Fees and Other Charges) Regulations, 2015

Published vide Notification No. G.S.R. 906(E), dated 27th November, 2015

Ministry of Home Affairs

(Land Ports Authority of India)

G.S.R. 906(E). - In exercise of the powers conferred by sub-section (1) read with clause (d) of sub-section (2) of section 35 and section 19 of the Land Ports Authority of India Act, 2010 (

31 of 2010

), the Land Ports Authority of India with the previous approval of the Central Government, hereby makes the following regulations, namely:-

1.

Short title and commencement.

(1)

These regulations may be called the Land Ports Authority of India (Fees and Other Charges) Regulations, 2015.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Definitions.

(1)

In these regulations, unless the context otherwise requires,-

(a)

"Act" means the Land Ports Authority of India Act, 2010 (

31 of 2010

);

(b)

"Authority" means the Land Ports Authority of India constituted under section 3 of the Act;

(c)

"cargo terminal" means the area within the integrated check post where handling and storage for import or export of cargo is undertaken and includes covered godowns, sheds, roads, parking area for cargo vehicle, open area with lorry weigh bridges and other support facilities such as cargo terminal building where offices of customs, custodian, clearing and handling agents, banks, etc., are housed;

(d)

"other facilities" means facilities or services like office accommodation, hotels, restaurants or canteens, kiosks or booths or counters or hoardings provided in rest rooms or in open area, waiting hall, sheds etc. and includes postal, money exchange, insurance, etc., and other services at an integrated check post;

(e)

"passenger terminal" means the area within the integrated check post where passengers have access and include covered buildings or sheds and open area including parking meant for them.

(2)

Words and expressions used herein and not defined, but defined in the Act, shall have the meanings respectively assigned to them in the Act.

3.

Fees, rent, etc., for services provided in the cargo terminal.

(1)

The Authority may charge fees for handling and transportation of cargo, warehousing, weighment, entry and parking fees for cargo vehicles and such other services provided at the cargo terminal.

(2)

The fees charged under sub-regulation (1) may be fixed by the Authority depending upon market conditions, volume of trade, cost of input and other trade practices prevailing in and around the concerned integrated check post.

4.

Fees, rent, etc., for services provided in the passenger terminal.

- The Authority may charge such fees, rent, etc., as it may determine from time to time, towards parking of vehicles and other services provided to the passengers and other visitors in the passenger terminal.

5.

Fees, rent, etc., for certain facilities and services.

(1)

The Authority may charge such fees, rent, etc., as it may determine from time to time, for providing accommodation to various agencies including Government Departments and other service providers like hotels, restaurants or canteens, kiosks or booths or counters or hoardings provided in the integrated check post.

(2)

The Authority may charge fees for providing consultancy services for construction or management and other related

services to outside agencies, at such rates as may be fixed by it from time to time, depending upon the nature, volume, period, cost etc., of such services or facilities.

6.

Review of fees, rent and other charges.

(1)

The Authority may, from time to time, review and modify the structure of fees, rent and other charges to be collected from various users of the integrated check post.

(2)

The periodicity of review made under sub-regulation (1) may be decided by the Authority keeping in view the circumstances necessitating such review.

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